

HUA DENG v. HASTON

21CV45684

DEFENDANT'S MOTION TO SET ASIDE DEFAULT/JUDGMENT

This is a civil action for trespass. Before the Court this day is a motion by defendant to set aside this Court's 02/24/22 default judgment.

Pursuant to Calaveras County Superior Court Local Rule 3.3.7 (adopted 1/1/18), "all matters noticed for the Law & Motion calendar shall include" specified language in the Notice of Motion, and "failure to include this language in the notice may be a basis for the Court to deny the motion." Based on plaintiff's failure to include the required language, the motion is DENIED, without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required. (In the interim, the parties are strongly encouraged to meet and confer in the hopes of finding some resolution to this issue given (1) the absence of a declaration of due diligence validating sub-service, and (2) the strong preference for cases to be tried on their merits.

[See *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134; *Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750; *Giorgio v. Synergy Mgmt. Group, LLC* (2014) 231 Cal.App.4th 241, 248-249; *Trackman v. Kenney* (2010) 187 Cal.App.4th 175, 185.]

HADERER v. GROSS et al

22CV46027

DEFENDANTS GROSS' DEMURRER AND MOTION TO EXPUNGE

This is a quiet title action based upon plaintiffs' ostensibly adverse possession of certain commercial property (which includes The Hotel Leger) within this County. Before the Court is a demurrer by defendants Barry Gross and Gross Mortgage Corporation to the operative pleading, as well as a defensive motion by Gross Mortgage Corporation to expunge lis pendens 2022-006783.

There is no opposition to either motion. Since the inception of this action, plaintiffs have been represented by Attorney Michael Abbott. Defense counsel mail-served the motion to expunge to Attorney Abbott's office on 06/21/22. Defense counsel personally dropped off (through a mail slot) the demurrer to Attorney Abbott's office on 06/29/22. On 07/15/22, defense counsel sent to Attorney Michael Abbott, via overnight mail, a notice of having not received any opposition to the pending motions.

The silence alone suggests tacit confirmation of defense arguments, but reference to the various emails attached to the defense papers and declarations bolsters this impression. Plaintiffs' counsel appears to be actually aware of the demurrer and motion to expunge, and plaintiffs appear aware that they have a questionable legal basis for concluding any ownership interest in the hotel based on defendant's willingness to let them live there and run the hotel until a permanent owner came along (which has since occurred) in exchange for paying the property taxes.

Demurrer – Sustained with 30 days leave to amend

The demurrer is sustained. Plaintiffs have not alleged any facts in Paragraph 12 permitting a finding that their use of the subject property was adverse, meaning that it was without the explicit or implicit permission of the landowner. (See *Husain v. California Pacific Bank* (2021) 61 Cal.App.5th 717, 725-726; *McBride v. Smith* (2018) 18 Cal.App.5th 1160, 1181; *Nielsen v. Gibson* (2009) 178 Cal.App.4th 318, 327; *Aaron v. Dunham* (2006) 137 Cal.App.4th 1244, 1249; *Felgenhauer v. Soni* (2004) 121 Cal.App.4th 445, 450.) Plaintiffs' averment regarding the payment of property taxes, while a necessary element of the claim, does not supplant the obligation to plead facts showing that such payment was without the true owner's actual consent – which appears to be the case here.

Although leave to amend is usually conditioned upon a request from the pleading party, and a showing of how the amendment might cure the defect, this Court is mindful of the fact that Attorney Abbott may be guilty of positive misconduct (abandonment), which would permit plaintiffs a chance to undo any judgment arising from silence in the face of a dispositive motion. (See, e.g., *Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 900; *Seacall Development, Ltd. v. Santa Monica Rent Control Bd.* (1999) 73 Cal.App.4th 201, 207.) As such, plaintiffs shall be permitted 30 days leave to amend.